

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Whitney Beber	Team: Squad #02	CCRB Case #: 201706855	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 08/13/2017 10:30 PM	Location of Incident: 1348 East Gun Hill Road	18 Mo. SOL 2/13/2019	Precinct: 47		
Date/Time CV Reported Sun, 08/13/2017 10:40 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 08/18/2017 11:30 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Alexander Badesco	05009	960190	047 PCT
2. POM Shawn Morris	10616	955222	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Shawn Morris	Abuse: Police Officer Shawn Morris stopped § 87(2)(b)	A . Exonerated
B . POM Alexander Badesco	Abuse: Police Officer Alexander Badesco stopped § 87(2)(b)	B . Exonerated
C . POM Alexander Badesco	Abuse: Police Officer Alexander Badesco threatened to arrest § 87(2)(b)	C . Exonerated
D . POM Shawn Morris	Abuse: Police Officer Shawn Morris refused to provide his shield number to § 87(2)(b)	D . Unsubstantiated
E . POM Alexander Badesco	Abuse: Police Officer Alexander Badesco refused to provide his shield number to § 87(2)(b)	E . Unsubstantiated

Case Summary

On August 13, 2017, § 87(2)(b) filed the following complaint with the Internal Affairs Bureau (IAB) under original IAB log number 2017-31203. On August 18, 2017, the Civilian Complaint Review Board (CCRB) received the following complaint.

On August 13, 2017, at approximately 10:30 p.m. § 87(2)(b) was at 1348 East Gun Hill Road in the Bronx outside of the Bright and Sunny Laundromat, waiting while his clothes dried. Police Officer Shawn Morris and Police Officer Alexander Badesco of the 47th Precinct exited an unmarked car and asked § 87(2)(b) to provide an identification card (**Allegations A and B: Abuse of Authority, exonerated**). § 87(2)(b) asked why they needed his identification card and refused to provide it. Police Officer Badesco told § 87(2)(b) that if he did not provide his identification card, they would take him to the stationhouse (**Allegation C: Abuse of Authority, exonerated**). § 87(2)(b) asked for Police Officer Morris' and Police Officer Badesco's shield numbers approximately three times. Both officers ignored § 87(2)(b)'s request for their shield numbers (**Allegations D and E: Abuse of Authority, unsubstantiated**). § 87(2)(b) eventually provided his ID and Police Officer Badesco wrote § 87(2)(b) a summons for § 87(2)(b) (Board Review 01).

The investigation was unable to obtain video footage for this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Shawn Morris stopped § 87(2)(b)
Allegation (B) Abuse of Authority: Police Officer Alexander Badesco stopped § 87(2)(b)
Allegation (C) Abuse of Authority: Police Officer Alexander Badesco threatened to arrest § 87(2)(b)
Allegation (D) Abuse of Authority: Police Officer Shawn Morris refused to provide his shield number to § 87(2)(b)
Allegation (E) Abuse of Authority: Police Officer Alexander Badesco refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) provided a telephone statement to the CCRB on August 24, 2017 (Board Review 05) and was interviewed in-person on August 31, 2017. § 87(2)(b) answered follow-up questions over the phone on September 29, 2017 (Board Review 06). On November 17, 2017, Police Officer Badesco was interviewed at the CCRB. On December 6, 2017, Police Officer Morris was interviewed at the CCRB.

It is undisputed that officers observed a beer can in a brown paper bag beside § 87(2)(b) less than a foot away from him, while he was standing outside alone. The officers never saw the beer in § 87(2)(b)'s hands. § 87(2)(b) initially refused to provide his identification to officers but eventually did so and was given a summons.

As per § 87(2)(b)'s telephone statement, he was standing outside of the Bright and Sunny Laundromat, leaning against a sign post. He turned around when he felt a car drive behind him, close to the sidewalk, and saw Police Officer Morris and Police Officer Badesco exit an unmarked vehicle. Police Officer Morris asked for his ID. § 87(2)(b) asked why they needed his ID. Police Officer Morris and Police Officer Badesco told him that a beer belonged to him. § 87(2)(b) told the officers that he was not drinking anything including a beer. One of the officers

picked up a can of beer off of the ground, which was less than a foot away from where § 87(2)(b) was standing. § 87(2)(b) told the officers that he was not going to give them his ID. Police Officer Badesco told § 87(2)(b) that if he did not give them his ID, they would take him to the Precinct Stationhouse. § 87(2)(b) then provided his ID. Police Officer Badesco wrote § 87(2)(b) a summons for having an open 24-ounce metal can of “Coors” in public view. § 87(2)(b) asked both officers for their shield numbers but they refused to provide them.

§ 87(2)(g) In his sworn statement § 87(2)(b) specified that the can of beer, which was in a brown paper bag, was in between the curb and the sign post against which § 87(2)(b) was leaning. § 87(2)(b) told the officers that he would provide his ID in exchange for their shield number in addition to asking them for their shield numbers approximately three times. When § 87(2)(b) refused to provide his ID, Police Officer Badesco allegedly told § 87(2)(b) “Come on, Come one, give it up, you know the rest, or else we’re taking you in.” The officers asked § 87(2)(b) for his ID approximately four times before he provided it.

As per Police Officer Badesco, he was riding in a police vehicle being driven by Police Officer Morris down East Gun Hill Road when he observed § 87(2)(b) leaning against a light pole with what appeared to be an open 24-ounce can of Coors beer in a brown paper bag approximately a foot away from § 87(2)(b)'s feet. There was no one near § 87(2)(b) when Police Officer Badesco observed him. Police Officer Badesco believed the beverage in the bag was alcoholic because it was a large can in a brown bag and based on his training some people on the street choose to carry their alcohol in the manner he observed. Police Officer Badesco never observed § 87(2)(b) reach for the bag. He associated the suspected can of beer with § 87(2)(b) because of its proximity to § 87(2)(b) because he believed § 87(2)(b) to have “custody and control” of it. Upon reaching § 87(2)(b) Police Officer Badesco picked up the can and confirmed that it was an open can of Coors beer. Police Officer Badesco asked § 87(2)(b) for his ID. § 87(2)(b) asked him why he needed his identification card. Police Officer Badesco asked § 87(2)(b) for his ID approximately two times before § 87(2)(b) provided it, after Police Officer Badesco explained why he needed it. Neither Police Officer Badesco nor Police Officer Morris ever told § 87(2)(b) that they would “take [him] in” if he did not provide his ID. Neither Police Officer Badesco nor Police Officer § 87(2)(b) threatened to arrest § 87(2)(b) Police Officer Badesco did not hear § 87(2)(b) request their shield numbers and neither Police Officer Badesco nor Police Officer Morris refused to provide their shield numbers. As Police Officer Badesco was giving § 87(2)(b) the summons and leaving, § 87(2)(b) asked him for his name. Police Officer Badesco told § 87(2)(b) that his name was “Officer Badesco” and told him his name was on the bottom of the summons.

Police Officer Morris § 87(2)(g) did not remember many details of the stop. Police Officer Morris could not estimate the distance between § 87(2)(b) and the open container for which he was issued a summons. Police Officer Morris did not remember if there was anyone around § 87(2)(b) at the time he observed him. When they exited their vehicle, Police Officer Morris remembered that they obtained § 87(2)(b)'s ID but did not remember if they had to ask for his ID more than once or if he ever refused to provide his ID. Police Officer Morris did not remember Police Officer Badesco or himself having told § 87(2)(b) that they would “take [him] in” if he refused to provide his identification card in reference to § 87(2)(b) providing his ID. Neither Police Officer Morris nor

Police Officer Badesco threatened to arrest § 87(2)(b) Police Officer Morris did not remember § 87(2)(b) ever offering to provide his ID in exchange for the officers' shield numbers. Neither Police Officer Morris nor Police Officer Badesco refused to provide their shield numbers to § 87(2)(b) Police Officer Badesco provided his name to § 87(2)(b) when he gave him the summons.

Civil summons number § 87(2)(b) was issued to § 87(2)(b) for § 87(2)(b) by Police Officer Badesco (Board Review 01)

An officer may stop a person if they have reasonable suspicion that the person has committed, is committing or is about to commit a crime. People v. De Bour, 40 N.Y. 2d 210 (1976) (Board Review 08).

No person shall possess, with intent to drink or consume, an open container containing an alcoholic beverage in any public place. NYC Administration code 10-125 (Board Review 09).

A person may be found to be in "possession" of something if they exercise dominion and control over the item, even if they do not physically possess it. Penal Law Section 10.08 (Board Review 07).

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be **exonerated**.

Patrol Guide Section 209-03 states that when issuing a civil summons, an officer is to establish the violator's identity and mailing address through observation of valid identification documents. If they do not possess a valid form of identification, the officer is to remove the violator to the command (Board Review 02).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be **exonerated**.

§ 87(2)(g)

It is therefore recommended that **Allegations D and E** be **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint in which § 87(2)(b) has been involved (Board Review 03).
- Police Officer Morris has been a member of the NYPD for four years and has six prior allegations in three cases, none of which were substantiated. § 87(2)(g)
- Police Officer Badesco has been a member of the NYPD for one year and has had no prior CCRB allegations.

Mediation, Civil and Criminal Histories

- On August 24, 2017, mediation was offered initially over the telephone but § 87(2)(b) did not make a decision as to which process he wanted to pursue. § 87(2)(b) was offered mediation again on August 31, 2017, at the conclusion of his in-person interview, which he declined § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date